

26STCV19298 26STCV19298

County: los-angeles

Division: Civil Law and Motion

Department: 515

Hearing date: 2026-09-11

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In

this unlawful detainer case, Plaintiff Playa Lincoln, LP ("Plaintiff") moves for summary judgment, or in the alternative, summary adjudication. Defendant Centinela Feed, Inc. ("Defendant") did not file an opposition.

Legal

Standard

CCP

§ 1170.7 provides that "A motion for summary judgment may be made at any time after the answer is filed upon giving five days' notice. Summary judgment shall be granted or denied on the same basis as a motion under Section 437c."

"In

moving for summary judgment, a 'plaintiff . . . has met' his 'burden of showing that there is no defense to a cause of action if' he 'has proved each element of the cause of action entitling' him 'to judgment on that cause of action.'" (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 849 (as modified (July 11, 2001).) The plaintiff "must present evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not—otherwise, he would not be entitled to judgment as a matter of law, but would have to present his evidence to a trier of fact." (Id., at 851, original italics.)

Once

the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (CCP § 437c(p)(1).)

“There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar, 25 Cal.4th at 850.) The defendant “shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (CCP § 437c(p)(1).)

“The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” (Id. § 437c(c).)

Analysis

The elements for unlawful detainer for nonpayment of rent contained in CCP § 1161 are “(1) the tenant is in possession of the premises; (2) that possession is without permission; (3) the tenant is in default for nonpayment of rent; (4) the tenant has been properly served with a written notice; and (5) the default continues after the three-day notice period has elapsed.” (Kruger v. Reyes (2014) 232 Cal.App.4th Supp. 10, 16.) “Due to the summary nature of such an action, a [notice to pay rent or quit] is valid only if the landlord strictly complies with the provisions of section 1161, subdivision 2.” (Levitz Furniture Co. v. Wingtip Communications, Inc. (2001) 86 Cal.App.4th 1035, 1038.)

Josh

Pebet, the portfolio manager of Decron Properties, the managing agent/property management company for Plaintiff, testified that in 2011, Plaintiff entered into a lease with Defendant whereby Defendant agreed to pay basic rent of \$9,250 per month for the first five years and \$10,212 for the next five years of the Lease

(the "Lease"). (Pebet Decl., ¶ 6, Ex. 1.) The parties entered into a first amendment to the Lease in April 2021, whereby Defendant agreed to pay basic rent of \$11,174 for the period of 2023 through 2027, and a second amendment in September 2024. (Id., Exs. 2-3.) Under the Lease and its amendments, Defendant failed to pay rent totaling \$78,396.40 for the period of November 1, 2025 through June 30, 2026. (Id., Ex. 4.) Plaintiff provides a copy of the five-day notice to pay rent or quit ("Notice"), which was signed by Pebet and served on Defendant on June 3, 2026 via FedEx. (Id., ¶ 19, Ex. 5.) Pursuant to Article 30(l) of the Lease, Plaintiff served Defendant with the Notice via FedEx. (Id., ¶¶ 18-19, Ex. 5; see also Rosenbaum Decl., ¶ 2.) Defendant did not pay the rent in the Notice and remains in possession of the property. (Pebet Decl., ¶¶ 27-28.)

Based

on the foregoing, and having reviewed the contents of the Notice, the court finds that that Plaintiff has met its initial burden on summary judgment of establishing that Defendant is guilty of unlawful detainer pursuant to CCP § 1161(2) for failure to pay rent, and the burden now shifts to Defendant to establish the existence of a triable issue of material fact. (CCP § 437c(p)(1).) Defendant did not file an opposition and did not raise any affirmative defenses in its answer. Defendant thus has failed to raise any triable issue of fact. The undisputed material facts therefore establish that Defendant is guilty of unlawful detainer and that Plaintiff is entitled to judgment as a matter of law.

Conclusion

Plaintiff's

Motion for Summary Judgment is granted.